

Supreme Court of The State of New York
County of Queens

SHANEE JENNINGS,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. CHRISTOPHE ASH, of the 103rd Precinct, P.O. JUSTIN GABELMAN of the 103rd Precinct, SGT. ELAINE GALVIN of the 103rd Precinct, and "New York City Police Officers "JOHN DOE 1-5", said names being fictitious as the actual names are not known,

Defendants.

Date Purchased

Index No.

Plaintiff(s) designate(s)

Queens County
as the place of trial

Summons

Plaintiff(s) reside(s) at
184-19 Henderson Avenue
Hollis, New York 11423

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: December 4, 2020
Brooklyn, NY



THE FORZANO LAW FIRM
Attorney for the Plaintiffs
Office and Post Office Address
271 Avenue U
Brooklyn, New York 11223
(718) 372-1397

Defendant's Address:

CITY OF NEW YORK	PO CHRISTOPHE ASH	PO JUSTIN GABELMAN	SGT ELAINE GALVIN
100 Church Street	103 rd Police Precinct	103 rd Police Precinct	103 rd Police Precinct
New York, NY 10007	168-02 91 st Avenue	168-02 91 st Avenue	168-02 91 st Avenue
	Jamaica, NY 11432	Jamaica, NY 11432	Jamaica, NY 11432

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VERIFIED COMPLAINT

Plaintiff, by her attorneys, **THE FORZANO LAW FIRM**, complaining of the
Defendants herein, as and for his Verified Complaint, upon information and belief, alleges:

FIRST That at all times hereinafter mentioned the Plaintiff, SHANEE JENNINGS,
was and still is a resident of the County of Queens, City and State of New York.

SECOND That at all times hereinafter mentioned the Defendant, THE CITY OF NEW
YORK, was and still is a Municipal Corporation duly organized and existing under and by virtue of
the laws of the State of New York.

THIRD That at all times hereinafter mentioned the Defendant, Police Officer
CHRISTOPHE ASH, was and still is employed as a New York City Police Officer, working out of
the 103rd Police Precinct, in the County of Queens, City and State of New York

FOURTH That at all times hereinafter mentioned, the Defendant, Police Officer
JUSTIN GABELMAN, was and still is employed as a New York City Police Officer, working out of
the 103rd Police Precinct, in the County of Queens, City and State of New York.

FIFTH That at all times hereinafter mentioned, the Defendant, Police Sergeant ELAINE GALVIN, was and still is employed as a New York City Police Officer, working out of the 103rd Police Precinct, in the County of Queens, City and State of New York.

SIXTH That at all times hereinafter mentioned the Defendant, approximately five (5) Police Officers hereinafter referred to as "JOHN DOE 1-5", fictitious names, real names being unknown to Plaintiff at this time, and intending to be the Police Officers who participated in this incident, were and still are employed as a New York City Police Officers, working out of the 75th Police Precinct as well as others, in the County of Kings, City and State of New York

SEVENTH That at all times herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of Law.

EIGHTH That all of the causes of actions pleaded herein fall within one or more of the exceptions set forth in the New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONMENT

NINTH Plaintiff repeats and realleges each and every allegation contained in paragraphs FIRST through EIGHTH, as though set forth at length herein.

TENTH That on or about December 28, 2019 and continuing to December 29, 2019,, while Plaintiff, lawfully within the living room of her residence, 184-19 Henderson Avenue, Queens, New York, taking refuge from co-habitant, Gerald Swindell, who had just accosted her by: grabbing her; pushing her; punching her multiple times in the chest; and throwing her to the floor, in an further attempt to frighten and intimidate her, the Defendants, P.O. CHRISTOPHE ASH, P.O. JUSTIN GABELMAN, SGT. ELAINE GALVIN, and Police Officers "JOHN DOE 1-5", acting on behalf of the Defendant, THE CITY OF NEW YORK in the scope of their employment by the New York

City Police Department, and in connection with an illegal and false arrest; removed her from her residence under the threat of violence; accosted Plaintiff without provocation; lifted and slammed the Plaintiff onto an EMS stretcher; lifted and slammed Plaintiff's head against the metal siderail of the EMS stretcher; placed her under arrest; illegally forcibly hand cuffed / restrained her; verbally and physically assaulted her; threatened and insulted her; cursed at her; attacked her; kneed her multiple times in the face; struck her; beat her; and caused her to temporarily lose consciousness; Plaintiff was then forced into EMS vehicle while handcuffed, and forcibly transported to a hospital against her will. It was at this time that while being treated at the hospital, that the Defendants attempted to transport the Plaintiff to a Police Precinct. The Defendants held her in Police Custody, handcuffed to a hospital bed without formally charging him with a crime, then finally, transported the Plaintiff to a police prescient, and eventually taken to Central Bookings where they charged Plaintiff with crimes they knew she didn't commit, and continued to prosecute her on such false charges, all without cause or justification.

ELEVENTH That on or about December 28, 2019 and continuing to December 29, 2019, the Plaintiff was falsely arrested without a warrant by the police officers acting on behalf of the Defendant, THE CITY OF NEW YORK.

TWELFTH That at the aforesaid time and place, and in connection with the aforesaid arrest, the police officers handcuffed and imprisoned the Plaintiff at all of the locations referred to hereinabove, and at other locations.

THIRTEENTH That the aforesaid arrest was a false arrest, and constituted false imprisonment, in that it was without probable cause, without a warrant and without just cause or justification.

FOURTEENTH That The City of New York, its agents, servants, employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that the Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

FIFTEENTH That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody.

SIXTEENTH That Plaintiff was held in Police Custody, confined against her will; knowing full well that the Plaintiff did not commit the crimes she was charged with.

SEVENTEENTH That Plaintiff was not read her Miranda Rights, and was denied the right to contact an attorney for over twelve (12) hours.

EIGHTEENTH That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable or just cause to believe she had.

NINETEENTH That the Plaintiff's arrest took place in her private home in front of her family, neighbors, daughter and other people in her community, and received wide notoriety in the community, and among her family and friends.

TWENTIETH That due to the fact that the Plaintiff was arrested on charges related to assault / harassment against her Uncle, which was false and fabricated, Plaintiff's relationship has been strained with family and friends, including her mother and cousins.

TWENTY-FIRST That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, Plaintiff suffered great mental distress, physical injury, irreparable damage to his reputation and character, her record was permanently marred with the false and groundless notation that she was arrested for assault, incurred substantial mental anguish, and incurred substantial and permanent psychological disturbance and embarrassment, as well as serious and permanent physical injury as hereinafter described.

TWENTY-SECOND That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

TWENTY-THIRD The Plaintiff repeats reiterates and realleges each and every allegation contained in the paragraphs of the Complaint numbered FIRST through TWENTY-SECOND as if fully set forth herein at length.

TWENTY-FOURTH That at the aforesaid times and places the Defendant physically assaulted, hit, struck, kicked, punched, beat and otherwise injured Plaintiff, as described above, causing severe physical injury and herein described.

TWENTY-FIFTH That the aforesaid beating, striking, hitting and other physical contact was excessive, unnecessary, unjustified, and improper in that the Plaintiff offered no resistance, committed no crime or offense, posed no danger to the Defendants. The Plaintiff who was free to refuse medical treatment and who lawfully refused said treatment, suddenly and without warning, was slammed face first against an EMS stretcher by the Defendant, Police Officers; was struck in the face; was held down against her will; while she was held against the EMS stretcher, she was unlawfully handcuffed was struck multiple times in the face causing severe injury as a result; all while surrounded by multiple trained police officers who participated in the assault.

TWENTY-SIXTH That the aforesaid acts constitute assault, battery and excessive use of force by the Defendants.

TWENTY-SEVENTH That solely by reason of the foregoing the Plaintiff has been damaged in the amount of Fifteen Million (\$15,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENCE

TWENTY-EIGHTH Plaintiff repeats and realleges each and every allegation contained in the FIRST and SECOND Causes of Action as if fully set forth at length herein.

TWENTY-NINTH That at the times and places aforesaid, the police officers, while acting within the scope of their employment by the Defendant, THE CITY OF NEW YORK and the New York City Police Department were negligent and grossly negligent and careless in arresting and taking into custody the Plaintiff.

THIRTIETH That such negligence and gross negligence consisted of, among other things, in that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated hunches, without any further verification or insufficient verification when the situation was not an emergency situation; failed to take proper precautions to prevent unnecessary injury to the Plaintiff while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to properly train the police officers; improperly assessed the Plaintiff as an emotionally disturbed person (EDP); failed to properly investigate the situation, and failed to protect the Plaintiff from her assailant (her uncle); improperly trained police officers; allowed an unstable police officer to remain on the force after repeated complaints of unnecessary force were made against him; failed to properly discipline a police officer that they knew, or should have known, was unfit to serve as a police officer; failed to properly supervise the police officers; and were otherwise careless and negligent.

THIRTY-FIRST That as a result of the aforesaid negligence, as well as the false arrest and assault and battery as alleged in the First and Second Cause of Action; the Plaintiff suffered severe injuries, including, amount others: Suffered injury to her arms, eyes, hands, head, face, ribs

and chest; suffered a black eye; suffered bruising throughout her body; suffered contusion and bruising to her head and eye; suffered blurry vision to the eyes; suffered diminished visual capability; suffered weakened eyesight; was forced to be placed on highly addictive oxycodone and other medicine; was caused to have difficulty breathing, sitting and standing; suffered severe, continuous, recurring and excruciating headaches; suffered dizziness and nausea; suffered bruises, black and blues, scrapes and abrasions about the body; suffered severe injury to his eye; was caused to be hospitalized was caused to have difficulty seeing; was caused to expend great sums for medical, hospital and other related expenses; will be required in the future to expend great sums for medical, hospital and other related expenses; has suffered great pain and distress; and was otherwise injured.

THIRTY-SECOND That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiff having in no way contributed thereto.

THIRTY-THIRD That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FOURTH CAUSE OF ACTION
CIVIL RIGHTS VIOLATION

THIRTY-FOURTH The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND and THIRD Causes of Actions as if fully set forth herein at length.

THIRTY-FIFTH That the aforementioned acts are the result of an actual and defacto policy of THE CITY OF NEW YORK as implemented by its public officials, police commissioners and police departments.

THIRTY-SIXTH That the aforesaid occurrences constitute a deprivation of Plaintiff's civil rights under Federal Law specifically 42 U.S.C. Section 1981, 1983, 1988 and the

FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

THIRTY-SEVENTH That the Defendant's agents and employees have been conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the assault, battery and imprisonment of Plaintiff.

THIRTY-EIGHTH That the aforesaid actions constitute an unlawful arrest, unlawful detention, and careless use of force, all in violation of the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS to the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

THIRTY-NINTH That solely as a result of the aforesaid violation of Plaintiff's rights of under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorney's fees as provided for by said statutes.

FORTIETH That solely by reason of the foregoing the Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

FORTY-FIRST The Plaintiff repeats, reiterates and realleges each and every allegation contained in FIRST, SECOND, THIRD and FOURTH Causes of Actions as if fully set forth herein at length.

FORTY-SECOND That the aforesaid acts, the insults, humiliation, degradation and harassment of the Plaintiff by the police officers without justification or provocation, constitutes the tort of intentionally inflicting emotion distress.

FORTY-THIRD As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

FORTY-FOURTH The Plaintiff repeats reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH and FIFTH Causes of Action as if fully set forth herein at length.

FORTY-FIFTH That the Defendants prosecuted Plaintiff on these false charges, with full knowledge that there was no basis in law for such a prosecution.

FORTY-SIXTH That as a result of such malicious and groundless prosecution, Plaintiff was forced to make numerous Court appearances to Defendant against these baseless charges.

FORTY-SEVENTH That after many such appearances all charges were dismissed.

FORTY-EIGHTH That as a result thereof, Plaintiff incurred attorney fees and other expenses in defending against these false charges.

FORTY-NINTH As a result thereof, Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES

FIFTIETH The Plaintiff repeats, reiterates and realleges each and every allegation contained in the FIRST, SECOND, THIRD, FOURTH, FIFTH and SIXTH Causes of Action as if fully set forth herein at length.

FIFTY-FIRST That the aforesaid acts by the Defendant was the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

FIFTY-SECOND That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

FIFTY-THIRD That solely by reason thereof Plaintiff has been damaged in the sum of Fifteen Million (\$15,000,000.00) Dollars.

FIFTY-FOURTH That heretofore and on March 16, 2020, the Plaintiff caused to be served upon the comptroller of the Defendant CITY OF NEW YORK, Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice of claim was served within 90 days of the occurrence complained of, and this action was commenced within one year from the date of said occurrence.

WHEREFORE: The Plaintiff demands Judgment against the Defendants in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, N.Y.
December 4, 2020

Yours, etc.



ANTHONY J. FORZANO, ESQ.
THE FORZANO LAW FIRM
Attorney for Plaintiff
Office & P.O. Address
271 Avenue U
Brooklyn, New York 11223
(718) 372 - 1397

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

I, the undersigned, being duly sworn, depose and say:

I am X the _____ one of the _____ Plaintiff(s) _____ Defendant(s) in the within action.

I have read the foregoing X COMPLAINT _____ AMENDED COMPLAINT
_____ BILL OF PARTICULARS _____ SUPPLEMENTAL BILL OF PARTICULARS and
know the contents thereof. The same is true to my own knowledge, except as to the matters
therein stated to be alleged on information and belief, and as to those matters I believe it to be
true. The grounds to my belief as to all matters not stated upon my own knowledge are from
information obtained due to my involvement with this case.

Sworn to before me this

Dec 4/2020 (date)





